

attainder, pro defectu tenentis, to the lord of the fee, if it was held in fee; but if he held in tail, the land upon the death of the offender devolved upon the issue in tail. *Attainder* related back to the *time of the offence*, and consequently from that time no valid trust could be created by the offender as against the Crown or the lord in cases of *treason, petit treason, or murder*, nor in cases of other felonies, except subject to the right of the Crown during the offender's life.

As respects the large * number of *felonies* in which *no* [*28] *attainder* took place, the offender, though convicted, might convey (*a*), and therefore might create a valid trust of his real estate. Outlawry upon felony was equivalent to attainder, and drew with it the same consequences (*b*).

As to the *goods and chattels* of traitors, felons, and outlaws, they were forfeited absolutely, but only from the time of conviction, or the declaration of outlawry, and therefore up to that period the traitor, felon, or outlaw, might vest his goods and chattels in a trustee upon trusts; but the law would not allow this power of disposition to be exercised collusively for the purpose of defeating the just rights of the Crown (*c*). The traitor, felon, or outlaw might sell the goods for valuable consideration (*d*); and so he might assign the property upon trust to secure the *bonâ fide* debt of a creditor (*e*); but the existence of the debt must have been actually proved, and the mere recital of it in the security was not sufficient (*f*). An assignment upon a meritorious consideration, as a bargain and sale to a trustee for the purpose of making provision for a son, would not support the deed (*g*). *Outlawry in misdemeanors and civil actions* (*h*) was a contempt of Court, and worked a forfeiture of the profits of the offender's lands for his life, and of his goods and chattels, absolutely. The person so outlawed, therefore,

(a) *Rex v. Bridger*, 1 M. & W. 145.

(b) See Co. Lit. 390, b; *Holloway's case*, 3 Mod. 42; *King v. Ayloff*, 3 Mod. 72.

(c) See *Saunders's estate*, 4 Giff. 179; and 1 N. R. 256; *Barnett v. Blake*, 2 Dr. & Sm. 117; and see Anon. 2 Sim. N. S. 71.

(d) *Hawk. Pl. of Cr. book 2, c. 49.*

(e) *Perkins v. Bradley*, 1 Hare, 219; *Whitaker v. Wisbey*, 12 C. B. 44; *Chownes v. Bayles*, 31 Beav. 351.

(f) *Shaw v. Bran*, 1 Stark. 320.

(g) *Jones v. Ashurst*, Skinn. 357.

[(h) Now by 42 & 43 Vic. c. 59, outlawry in civil proceedings has been abolished.]